



Agreement for Independent Contract Services

Date: November 16, 2012

Term: November 16, 2012 to May 1, 2013

Total Amount: \$11,435

Contractor: Pashek Associates
619 East Ohio Street
Pittsburgh, Pa 15212

Federal ID: EIN # 25-1777995

This Agreement for Independent Contract Services ("Agreement") by and between the Ohio River Trail Council (ORTC), a registered Pennsylvania non-profit corporation and Pashek Associates ("Contractor") (collectively, the "Parties") consists of this contract form plus the following document:

- 1) Exhibit A: Standard Terms and Conditions

Exhibit A, attached hereto and hereby incorporated by reference, shall be part of this contract form just as if it physically appeared within same. Together, the terms and conditions of this contract form and Exhibit A constitute the entire agreement by and between the parties with respect to the subject matter hereof, and shall inure to the benefit of, and shall be binding upon, the parties, their respective successors and permitted assigns.

In consideration of the mutual covenants, terms and conditions as hereinafter set forth, ORTC and Pashek Associates agree to the following terms and conditions.

1. Purpose

The purpose of this Agreement is to set forth the terms and conditions under which ORTC will receive from Contractor, and by which Contractor will provide to ORTC, certain described services and/or deliverables, as set forth more fully in Paragraph 3, (collectively, the "Services").

2. Term

Provision of Services by Contractor shall begin on November 16, 2012 and shall be completed on or before May 1, 2013, unless this Agreement is terminated earlier in accordance with the terms of this Agreement.

3. Services/Scope of Work

Contractor shall provide the all the services as out lined in the Request for proposal as well as the Contractors response to the request for proposals including the revised proposal but not including the cost of printing as referenced in EXHIBIT B to the ORTC.

4. Compensation

The total compensation payable to Contractor for satisfactory performance of Services under this Agreement shall not exceed \$11,435; said total amount is inclusive of all costs related to performance of Services, including expenses. Contractor represents and warrants that it can provide satisfactory performance of Services, in their entirety, for \$11,435 per their response for proposal but not including printing. ORTC will retain the option to finance the printing of the Map/Guide under separate contract for an amount not to exceed \$3565.

5. Payment; Reimbursement Basis

5.1 Payment. ORTC will pay Contractor on a reimbursement basis upon acceptance and approval of Services provided in accordance with this Agreement, and upon receipt of a properly completed written invoice to be submitted to ORTC.

Invoices are to be submitted upon delivery of the following tasks and deliverables:

- A. Compile and Review Existing Information and Base Maps, and Prepare Base Maps for the Map/Guide.
- B. Preparation of Water Trail Map & Guide, including logo.
- C. Publication of Map/Guide
- D. Twenty-five per cent of the contract will be withheld until the final project deliverables have been received.

5.2 Reimbursement Basis. Funding for payment of Services is provided by a grant from the National Park Service Challenge Cost Share Program and Port of Pittsburgh Commission ("Agency"). Contractor agrees that ORTC's liability for payment shall be contingent on the following additional terms and conditions:

- A. Within ten (10) business days of receipt of Contractor's invoice, ORTC shall prepare and submit a corresponding invoice to Agency for grant disbursement. Contractor's delay in invoicing ORTC shall not cause ORTC to incur liability to Contractor for Agency's corresponding delay and/or refusal of payment of Services; nor shall ORTC be responsible for the resolution of any invoice disputes between Contractor and Agency.
- B. ORTC shall not be liable for payment of Contractor's invoice until ORTC has received corresponding grant disbursement from the Agency; nor shall FOR be liable for any deferment in payment to Contractor resulting from delay or postponement of grant disbursement from the Agency. ORTC will make its best effort to have payments made within twenty (20) business days of receipt of grant disbursement.
- C. Contractor understands that payment is contingent upon funding availability via the Grant. Accordingly, should the Agency reduce and/or terminate the Grant, ORTC will immediately notify Contractor in writing of such reduction and/or termination and this Agreement shall be amended in kind without the necessity of obtaining further consent from Contractor.

6. Notice

All notices required or permitted under this Agreement shall be in writing and deemed to have been sufficiently given for all purposes in the Agreement when mailed by registered or certified mail, postage prepaid, return receipt requested, to the following:

Pashek Associates:

John O. Buerkle, Vice President
619 east Ohio St
Pittsburgh, Pa 15212

Ohio River Trail Council:

Vincent Troia, CEO
1100 Pennsylvania Av
Monaca, Pa 15061

7. Acknowledgement of the Standard Provisions

Contractor specifically acknowledges that it has read and understands the terms and conditions contained in Exhibit A (Standard Terms and Conditions), and acknowledges that by executing this Agreement, Contractor shall be legally bound by all of the terms of the Agreement, including, but not limited to, those set forth in Exhibit A.

8. Other Additional Terms and Conditions

- 1. Ohio River Trail Council Supplementary Contractor Agreement (Referenced as EXHIBIT C)**

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the later of the dates as set forth herein below.

Acceptance:

Pashek Associates:

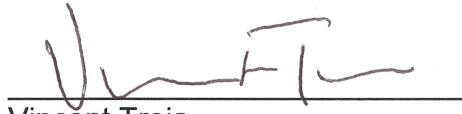


John O. Buerkle
Vice President

11.16.12

Date

Ohio River Trail Council:



Vincent Troia
CEO

11/16/12

Date

- D. Grant funding actually received by ORTC from the Agency shall limit ORTC's liability for payment to Contractor for Services. The Contractor payments will be delayed until at which time the ORTC obtains the required funding.

6. Notice

All notices required or permitted under this Agreement shall be in writing and deemed to have been sufficiently given for all purposes in the Agreement when mailed by registered or certified mail, postage prepaid, return receipt requested, to the following:

Pashek Associates:

John O. Buerkle, Vice President
619 east Ohio St
Pittsburgh, Pa 15212

Ohio River Trail Council:

Vincent Troia, CEO
1100 Pennsylvania Av
Monaca, Pa 15061

7. Acknowledgement of the Standard Provisions

Contractor specifically acknowledges that it has read and understands the terms and conditions contained in Exhibit A (Standard Terms and Conditions), and acknowledges that by executing this Agreement, Contractor shall be legally bound by all of the terms of the Agreement, including, but not limited to, those set forth in Exhibit A.

8. Other Additional Terms and Conditions

1. **Ohio River Trail Council Supplementary Contractor Agreement (Referenced as EXHIBIT C)**

IN WITNESS WHEREOF, the parties hereto have executed this Agreement as of the later of the dates as set forth herein below.

Acceptance:

Pashek Associates:

Ohio River Trail Council:

John O. Buerkle
Vice President

Vincent Troia
CEO

Date

Date



EXHIBIT A: Standard Terms and Conditions

1. Performance of Services; Contractor Responsibilities

1.1 Best Efforts and Performance. Contractor shall provide the Services as more fully described in Paragraph 3 of the Agreement (“Services/Scope of Work”) in a professional manner in accordance with the current professional standards and with the diligence and skill expected for the performance of work of the type described. All payments to Contractor are contingent upon Contractor’s satisfactory performance pursuant to the terms and conditions set forth in the Agreement, and are subject to ORTC’s approval and acceptance thereof. Said approval and acceptance shall not be unreasonably withheld.

1.2 Time of the Essence. Both ORTC and Contractor agree to satisfy their obligations under the Agreement on a prompt basis, time being of the essence of the Agreement.

1.3 Contractors Responsibilities. Unless otherwise provided in the Agreement, Contractor shall provide and pay for all labor, materials, equipment, tools, utilities, transportation, and other facilities and services necessary for proper execution and completion of Services.

1.4 Independent Capacity of Contractor. The parties intend that an independent contractor relationship be created by the Agreement. Contractor is not an employee, partner or agent of FOR. Contractor shall not hold itself out as or claim to be an officer, agent, or employee of FOR by reason hereof, nor shall Contractor make any claim of right, privilege or benefit that would accrue to such employee or agent of ORTC or under law. Performance of Services will be solely with Contractor, in accordance with the terms and conditions of the Agreement. Contractor shall be solely responsible for, and ORTC shall have no obligation with respect to, the withholding and payment of federal, state, and local taxes, fees, and assessments of every kind and nature with respect to the Services performed and the consideration payable under this Agreement.

1.5 Subcontracting. Contractor shall not subcontract with any person or entity, other than those specified in the Agreement, to perform any or all of the Services without the prior written consent of ORTC. Contractor shall be responsible to ORTC for the acts and omissions of all subcontractors, agents, and employees of Contractor; in no event shall the existence of a subcontract operate to release or reduce the liability of Contractor to ORTC for any breach in performance of Contractor’s duties under the Agreement. No contractual relationships exist between ORTC and any subcontractor, agent, or employee of Contractor.

1.6 Reporting. Contractor is required to report to ORTC, or to its designated representative, on a regular basis throughout the term of the Agreement, to resolve any concerns or problems that may occur during the Term of the Agreement, and/or to discuss the progress made by Contractor in the performance of its obligations.

2. Payment Procedures and Requirements

2.1 Invoices shall be submitted in writing to ORTC. All invoices shall describe and document, to ORTC's satisfaction, Services performed and expenses incurred by Contractor.

2.2 The total compensation amount identified in the Agreement shall be paid only to the extent that costs are incurred by the Contractor in performance of the Services in accordance with the provisions of the Agreement. ORTC shall not be liable for any costs or expenses incurred by Contractor in excess of the total compensation amount identified in the Agreement.

2.3 ORTC retains the right to request additional or supplementary information from Contractor prior to payment, including but not limited to any relevant and appropriate expense receipts or statements. These records and documentation shall be provided to ORTC in a prompt manner and at no additional cost.

2.4 ORTC reserves the right to withhold payments if, in ORTC's sole opinion, Contractor has not satisfactorily performed Services or complied with the terms and conditions of the Agreement. Contractor is solely responsible for any audit exceptions or disallowed costs, including those incurred by its subcontractors.

2.5 Release by Contractor. The acceptance by Contractor of final payment shall release ORTC from all claims and liability that the Contractor, its representatives and assigns might otherwise have relating to the Agreement. Contractor shall notify ORTC immediately of any dispute in regards to payment.

3. Indemnification

To the fullest extent permitted by law, Contractor agrees that it shall defend, indemnify, and hold harmless ORTC, and ORTC's officers, directors, agents, and employees, from any and all claims, liabilities, causes of action, or damages arising out of or related to acts, omissions, or negligence of Contractor, its officers, employees, agents, or subcontractors. The obligations of Contractor under this provision shall survive any expiration or termination of the Agreement, and shall not be limited by any enumeration herein of required insurance coverage.

4. Confidentiality; Nondisclosure

Contractor shall not use or disclose any information concerning ORTC, or information that may be classified as confidential, for any purpose not directly connected with performance of Services, except with prior written consent of ORTC, or as may be required by law.

5. Intellectual Property

5.1 Unless otherwise provided and/or agreed upon in writing by ORTC, all work products, materials, documents, and data (collectively, Agreement Work Product) created or produced pursuant to the Agreement shall be considered "works for hire" and shall be owned by ORTC. Contractor hereby irrevocably assigns all right, title, and interest, including all intellectual property rights, to ORTC effective from the moment of creation or production of such Agreement Work Product. Contractor shall undertake all necessary actions to protect ORTC's ownership of Agreement Work Product.

5.2 For materials, documents, and data that are delivered pursuant to the Agreement, but that incorporate pre-existing intellectual property not produced under the Agreement, Contractor hereby grants to ORTC a royalty-free, irrevocable license in such pre-existing intellectual property to translate, reproduce, distribute, prepare derivative works, and publicly perform or display.

- A. Contractor warrants that it has all rights and permissions, including intellectual property rights and rights of publicity, necessary to grant such a license to ORTC. Contractor shall indemnify ORTC against all costs, damages, and attorney's fees that accrue as a result of any claim by a third party against ORTC that the materials, documents, and data delivered by Contractor pursuant to the Agreement infringe upon or violate any patent, service mark, or copyright.

6. Suspension; Termination

6.1 ORTC reserves the absolute right to suspend or terminate the Agreement, in whole or in part, for any reason or at any time, upon written notice to Contractor.

6.2 In the event of suspension or termination of the Agreement:

- A. Contractor shall immediately cease performance of Services under the Agreement on the date, and to the extent specified, in the suspension or termination notice. Contractor shall not incur any additional expenses after the date of suspension or termination, excepting those costs reasonably required to provide an accounting of Services and expenses incurred prior to the suspension or termination date.
- B. ORTC shall only be liable for payment for Services satisfactorily performed, or authorized expenses reasonably incurred prior to the date of suspension or termination. ORTC may withhold from any amounts due Contractor such reasonable sum as ORTC determines necessary to protect ORTC against potential loss or liability.
- C. Upon termination of this Agreement by ORTC, all work product, materials, and confidential information held by Contractor shall promptly be returned to ORTC.

6.3 If ORTC terminates the Agreement for cause due to a material breach by Contractor, including but not limited to Contractor's failure to perform Services in accordance with the Agreement, Contractor shall be liable for damages as authorized by law. In the event of a breach by Contractor, ORTC may pursue any and all remedies available in law and in equity, and may recover attorneys' fees and court costs associated with ORTC's said pursuit should ORTC prevail.

6.4 The rights and remedies of ORTC provided in this section shall not be exclusive and are in addition to any other rights and remedies provided under law or the Agreement.

7. Assignment

Neither the Agreement, nor any claim arising under the Agreement, shall be transferred or assigned by Contractor without prior written consent of ORTC, which ORTC may withhold for any reason.

8. Insurance

8.1 Maintenance of Insurance; Policy Provisions. Contractor shall maintain, for the Term of the Agreement, and at its own cost and expense, insurance of the types and in the amounts specified in Section 8.2 hereof (entitled Types of Insurance). All such insurance shall be evidenced by insurance policies, each of which shall:

- A. name or be endorsed to cover ORTC as additional insured;
- B. provide that such policy may not be cancelled or modified until at least 30 days after receipt by ORTC of written notice thereof; and
- C. be reasonably satisfactory to ORTC in all other respects.

8.2 Types of Insurance

- A. Commercial General Liability: At least \$1,000,000 Combined Single Limit coverage on an occurrence basis covering all premises and operations and including Independent Contractor, Contractual Liability, and Products and Completed Operations.
- B. Professional Liability (Errors & Omissions): Professional Errors & Omissions Liability with a limit of no less than \$1,000,000 per claim.
- C. Commercial Automobile Liability: At least \$500,000 Combined Single Limit to include owner, non-owned and hired.
- D. Workers' Compensation: Statutory benefits as required by the Commonwealth of Pennsylvania or federal law.

8.3 Upon request, Contractor shall promptly provide to ORTC certificates of insurance issued by the respective insurers, evidencing the insurance required by the Agreement and bearing notations evidencing the payment of the premiums thereon or accompanied by other evidence of such payment satisfactory to ORTC.

9. AMENDMENT

The Agreement may be amended by mutual consent of the parties. Such amendments shall not be binding unless they are in writing and signed by personnel authorized to bind each of the parties.

10. ASSURANCES

FOR and Contractor warrant that all activity pursuant to the Agreement, including but not limited to performance of Services by Contractor, will be in accordance with all applicable current federal, state, and local laws, rules, and regulations.

11. RECORDS MAINTENANCE

The Contractor shall keep, maintain, and preserve at its principal office throughout the term of the Agreement and for a period of three years after acceptance of the Services, full and detailed books, accounts, and records pertaining to the performance of the Agreement, including without limitation, all bills, invoices, payrolls, subcontracting efforts, and other data evidencing, or in any material way related to, the direct and indirect costs and expenses incurred by Contractor in the course of such performance. If any litigation, claim, or audit is started before the expiration of the three-year period, the records shall be retained until all litigation, claims or audit findings involving the records have been resolved.

12. SEVERABILITY

If any provision of the Agreement is held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of the Agreement is invalid or unenforceable, but that by limiting such provision the Agreement would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

13. WAIVER

Waiver of any default or breach shall not be deemed a waiver of any subsequent default or breach. Any waiver shall not be construed to be a modification of the terms and conditions of the Agreement unless stated to be such in writing and signed by an authorized representative of ORTC.

14. FORCE MAJEURE

Neither party shall be responsible for nonperformance, or delay in performance, of obligations set forth in the Agreement due to causes beyond its reasonable control.

15. CHOICE OF LAW

The Agreement shall be construed and interpreted in accordance with the laws of the Commonwealth of Pennsylvania.

16. SECTION HEADINGS

Section headings used herein are inserted for convenience only and are not part of the Agreement.

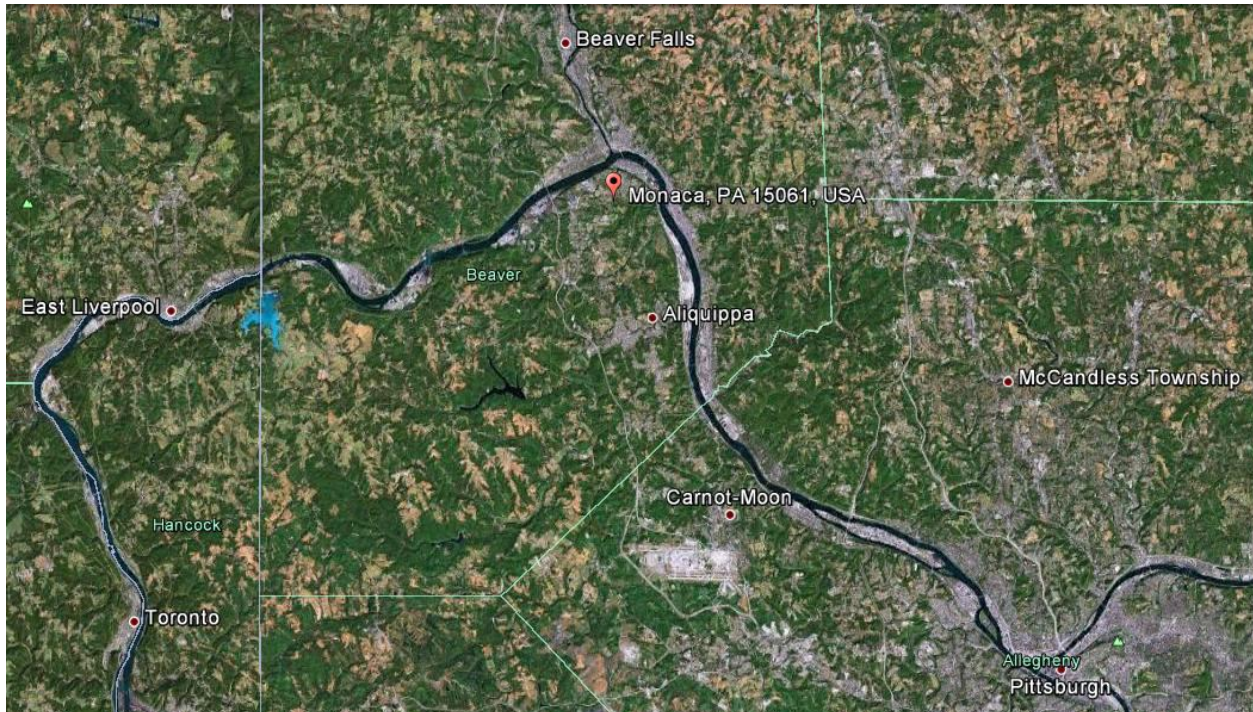
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EXHIBIT B: ORTC Request for Proposal and Proposal Response

**REQUEST FOR PROPOSALS (RFP)
WATER TRAIL MAP & GUIDE PREPARATION**

OHIO RIVER WATER TRAIL (ORWT)



Proposals due 12:00 noon, on Thursday, October 11, 2012

Submit to: Dr. Vincent Troia

Chief Executive Officer, Ohio River Trail Council

1100 Pennsylvania Av | Monaca PA 15061

Phone: 724.728.2625 | Cell: 724.462.3183 | drvtroia@ohiorivertrail.org

www.ohiorivertrail.org

**REQUEST FOR PROPOSALS
WATER TRAIL MAP & GUIDE PREPARATION
OHIO RIVER WATER TRAIL (ORWT)
September 10, 2012**

1. OVERVIEW

The Ohio River Trail Council (ORTC) is composed of a dedicated and visionary leadership to develop strategies and implement our initiatives to realize our mission. The ORTC is a multi-municipal organization that is committed to excellence and has passion for delivering outstanding results.

The ORTC, in partnership with the Pennsylvania Environmental Council (PEC), and with partial funding from the Port of Pittsburgh Commission (PPC), National Park Service (NPS) and local matches, is developing a water trail system in the Pennsylvania counties of Allegheny and Beaver. The blueway will connect the Three Rivers Water Trail in Allegheny County, Pa to Columbiana County, Ohio and Hancock County, West Virginia.

The boundary of the proposed 63-mile Ohio River Water Trail (ORWT) is from the beginning of the Ohio River at milepost 0.0 at the confluence of the Monongahela and Allegheny Rivers at Point State Park in Pittsburgh PA, downstream to Newell WV at milepost 46.0. The ORWT will also include the following tributaries: 1) twelve-miles of the Little Beaver Creek to Beaver Creek State Park, 2) three-miles of the Beaver River to the Townsend (Fallston) Dam, and 3) two-miles of the Raccoon Creek including the Rocky Bottom Raccoon Creek Road launch.

The ORTC Ohio River Water Trail (ORWT) Committee, established May 11 2012, includes representatives from the Pennsylvania Fish & Boat Commission, US Fish & Wildlife Service's Ohio River Islands National Wildlife Refuge, US Army Corps of Engineers and local communities and interested nonprofit organizations (See ATTACHMENT A for complete list of partners and affiliations).

The goal of the ORWT Project is to furnish and promote safe access to our region's waterways while also providing connections to our history, ecology, geology, heritage, wildlife and economic stimulus. The endeavor specifically provides for the expansion and promotion of canoe, kayak and rowing access along the Ohio River and its tributaries with the objective to add sections of the Beaver River, Little Beaver Creek, Ohio River and Raccoon Creek to the Pennsylvania Water Trails System, and ultimately to the National Water Trail System. Once the ORWT gains the recognition of a state water trail, this accomplishment will assist our partner communities to meet our shared goal of increased ecotourism and economic stimulus as well as improved utilization and stewardship of our natural and recreational resources by our residents.

The ORTC is asking you to join us in the development and production of the Ohio River Water Trail Map & Guide to be used by paddlesports enthusiasts, motor boaters and anglers.

2. SCOPE OF SERVICES

The scope of services for the preparation of the water trail map and guide will include review of existing information and base maps, preparation of base maps, and preparation of the map/guide in a suitable format for printing. Optional service will include publication of map/guide.

Deliverables:

- 1) GIS files (i.e. shape files) of base mapping, for future map updates.
- 2) Graphic design files (i.e. EPS files) of the map/guide ready to take to the printer.
- 3) Website files of the map/guide (i.e. PDF format), segmented into 8½" x 11" pages for printing by the general public.
- 4) Logo design (i.e. JPG format with EPS file available).
- 5) Optional: Printed Map/Guide from professional print shop, using agreed on specifications.

Tasks to be performed will include the following, working in close collaboration with the Ohio River Water Trail Committee of the Ohio River Trail Council:

2.1 Compile and Review Existing Information and Base Maps:

- 2.1.1 Review and compile existing Geographic Information System (GIS) base maps that are available from the PA Fish & Boat Commission (PFBC), Pennsylvania Spatial Data Access (PASDA) and other regional plans. These maps will include: topography [digital elevation], bridges, roads, railroads, hydrology, public lands [local, state, and federal parks, forests, and game lands], locks and dams, river miles, land trails, public access points, and state, county and municipal boundaries;
- 2.1.2 Assess corridor by boat identifying and verifying existing and potential access points, hazards along the river, and opportunities along the river. Acquire additional GPS points as needed. ORTC has compiled 529 PowerPoint slides with much of this information (see Attachment C);
- 2.1.3 Review relevant planning documents related to trails and greenways for this region including county greenway and trail plans to be provided by the ORTC.

2.2 Prepare Base Maps for the Map/Guide

- 2.2.1 The refinement of mapping will include compiling the various sources of mapping information into one large base map with possible segment insets and adding additional (non GIS) information.
- 2.2.2 Mapping should be completed in GIS, or in another format that is agreeable to the ORTC, and it should be in a format that allows information to be updated over time;
- 2.2.3 GIS layers will include the following information: major and minor roads, hydrology (major rivers and streams), state, county and municipal boundaries, public lands (forests, game lands, parks, county and municipal parks), existing and proposed trails (including the Ohio River Land Trail), digital elevation, public and key private access points (provided by client) and river miles (refer to ATTACHMENT B for a complete list of map layers);
- 2.2.4 Revise maps to incorporate additional points of interest, labeling, and text to include interpretive, visitor use, and safety information (ORTC will provide lat/long of most all points of interest and brochure text);
- 2.2.5 Prepare inset maps, if needed, that show more detail of the tributaries, and including directions to access points, dam portages, campgrounds (ORTC will provide lat/long of most all points of interest and brochure text);
- 2.2.6 Prepare two index maps: 1) showing the location of the Ohio River Water Trail to PA, WV, and OH; and 2) showing the location of the various inset maps, as needed.

2.3 Preparation of Water Trail Map & Guide

- 2.3.1 Export maps for graphic design, in a mutually agreed upon format such as an EPS file, for the design and layout of trail map/guide;
- 2.3.2 Design and layout the text side and map side of a visually aesthetic and easy-to-understand and use water trail map/guide. The design should adhere to other water trail map and guides that are available on the PA Fish and Boat Commission web site (<http://fishandboat.com/watertrails/>);
- 2.3.3 Assist the ORTC with creation of a water trail logo. Provide logo in vector format, JPG format and incorporate into the PFBC Water Trail logo standard.
- 2.3.4 Segment the map/guide into easy-to-use and easy-to-read pages for website publication. Provide maps in 8½ x 11" printable format, preferably in an Adobe PDF format or similar universal format.
- 2.3.5 Work with ORTC to ensure that the map/guide is correctly printed with the correct specifications for a high quality product.

2.4 Optional: Publication of Map/Guide.

- 2.4.1 ORTC will retain the option to finance the printing of the Map/Guide under separate contract. Please provide your bid with and without the inclusion of printing costs.
- 2.4.2 Printing specifications are:
 - 2.4.2.1 Trim Size of Paper: 16.50" x 21.75"
 - 2.4.2.2 Paper Stock: House Gloss 100#T – White (.0055)
 - 2.4.2.3 Ink: 4/4: -4/C Process over 4/C Process
 - 2.4.2.4 Proof: One set of digital proofs included
 - 2.4.2.5 Bindery: Cut, fold, shrink-wrap, carton pack
 - 2.4.2.6 Quantity: 10,000 / 20,000
 - 2.4.2.7 Press-ready digital file supplied

3. PROPOSAL FORMAT AND CONTENTS

3.1 Format:

Six paper copies of the proposals and one digital copy (in PDF format) shall be submitted by the deadline on the cover page and should include:

- 3.1.1 Title Page
- 3.1.2 Cover Letter
- 3.1.3 Cost breakdown by each of the four tasks, direct expense, and overhead factor, including billing rates for each person and projected time of involvement.
- 3.1.4 Statement of consultant qualifications, including resumes of persons to be involved in the project.
- 3.1.5 List of subcontractors, if applicable.

4. CONSULTANT SELECTION

4.1 Selection Criteria:

Proposals shall be evaluated according to the following criteria:

- 4.1.1 Completeness of the proposal and the extent to which the objectives and schedule of the project have been met or exceeded.
- 4.1.2 Experience of consultant with similar projects.
- 4.1.3 Experience of the project manager and of individuals assigned to this project.
- 4.1.4 Total project cost, and appropriateness of cost allocation among tasks.
- 4.1.5 Assurance to complete project in a timely fashion.

4.2 Selection Procedure:

4.2.1 The ORTC and other project partners as appropriate shall review the proposals.

4.2.2 After initial review and discussion of the proposals, the ORTC may interview those consultants that it selects as finalists. Costs incurred for the interview are not reimbursable.

4.2.3 The ORTC may at its discretion choose to select an awardee without interviews.

4.2.4 The ORTC reserves the right to dismiss all proposals if deemed unacceptable with regard to this Request for Proposals.

5. SCHEDULE

September 10, 2012	Request for Proposals released.
September 27, 2012	Questions from proposers.
October 5, 2012	Responses to Questions. All responses will be publicly available.
October 11, 2012	Proposals due at the ORTC address. This is not a postmark deadline.
November 1, 2012	Contract Starts.
May 1, 2013	Product is back from the printer. All deliverables are in.

ATTACHMENT A - LIST OF PARTNERS AND AFFILIATIONS

Ohio River Water Trail Committee (alphabetical order), August 2012

Brenda Applegate, Executive Director Beaver County Historical Research & Landmarks Foundation
The William Vicary Mansion | 1235 3rd Ave. | Freedom, PA 15042
Phone: 724-775-1848 | Fax: 724-775-1523 | bchrlf@verizon.net | www.bchrlf.org

Gregory Bellich, U.S. Army Corps of Engineers, Pittsburgh District
2200 William S. Moorhead Federal Building | 1000 Liberty Avenue | Pittsburgh, PA 15222-4186
Phone: 412-395-7171 | Cell: 814-282-8319 | Fax: 412-644-2811 | gregory.a.bellich@usace.army.mil | <http://www.lrp.usace.army.mil/>

Donna Campbell, Secretary ORTC Board of Directors
1100 Pennsylvania Av | Monaca Pa 15061
Phone: 724-846-4528; 724-630-4823 | D_campbell1@verizon.net | www.ohiorivertrail.org

Hannah E. Hardy, Director of Recreational Infrastructure
PA Environmental Council | 22 Terminal Way | Pittsburgh, PA 15219
Phone: 412-481-9400 | hhardy@pecpa.org | PEC www.pecpa.org | PA Water Trails www.pawatertrails.org

Tom King, Director Beaver County Recreation & Tourism Dept.; Bradys Run Park Recreation Facility
121 Bradys Run Road, Beaver Falls, PA 15010
Phone: 724/770-2060 - Recreation Dept. | Phone: 724-770-2062 - Tourism Dept. | tking@beavercountypa.gov; | www.VisitBeaverCounty.com

Mindy McKee, Secretary ORTC Board of Directors
1100 Pennsylvania Av | Monaca Pa 15061
Phone: 412-974-2291 | mckee@zoominternet.net | www.ohiorivertrail.org

Victoria E. Michaels, Executive Director Independence Conservancy
P.O. Box 248 | Industry, PA 15052-0248
Phone: 724-495-7316 | vemichaels@gmail.com | www.independenceconservancy.org

Peggy Pings, Outdoor Recreation Planner, National Park Service - RTCA
WV Field Office | 325-F Percival Hall | P.O. Box 6125 | Morgantown, WV 26506-6125
WVU Office: 304-293-7528 | Cell: 304-282-7464 | Home Office: 304-879-5622 | Fax: 304-293-2441 | mpings@wvu.edu | www.nps.gov/rtca

Doniele J. (Andrus) Russell, CFM Shared Greenways and Environmental Planner Beaver County
810 3rd Street | Beaver, PA 15009
Phone: 724-770-4428 | Cell: 724-968-0793 | dandrus@beavercountypa.us | donielerussell@gmail.com | www.beavercountypa.gov/

Sara Siekierski, Acting Refuge Manager, Ohio River Islands NWR
3982 Waverly Rd. | Williamstown, WV 26187
Phone: 304-375-2923 ext. 123 | Cell: 304-966-2028 | Fax: 304-375-2926 | sara_siekierski@fws.gov

John Szatkiewicz, Mayor Ohioville & Vice President ORTC
6429 Tuscarawas Road | Midland PA 15059
Phone: 724-643-8422 | Cell: 724-544-3654 | 57bird@comcast.net | www.ohiorivertrail.org

Raymond Tabay, Beaver County Rowing Association
306 Shirley Drive | Monaca, Pa 15061
Phone: 724- 728- 8860 | raymond.tabay@yahoo.com | www.beavercountyrowing.org

Linda Tice, ORTC Board of Directors
6429 Tuscarawas Road | Midland PA 15059
Phone: 724-643-8422; Cell: 724-544-3654 | 57bird@comcast.net | www.ohiorivertrail.org

Dr. Vincent Troia | Chief Executive Officer Ohio River Trail Council
1100 Pennsylvania Av | Monaca, Pa 15061
Phone: 724.728.2625 | Cell: 724.462.3183 | Fax: 724.775.9876 | drvtrioa@ohiorivertrail.org | www.ohiorivertrail.org

Dennis F. Tubbs, Southwest Regional Outreach and Education Coordinator Pennsylvania Fish and Boat Commission
Bureau of Boating and Outreach | 236 Lake Road | Somerset, PA 15501
Phone: 814-279-3078 | Cell: 814-442-0722 | Fax: 814-445-3497 | dtubbs@pa.gov | www.fish.state.pa.us

Sam Wagner, U.S. Army Corps of Engineers, Pittsburgh District
<mailto:samuel.f.wagner@usace.army.mil>
Pittsburgh PA 15222-4186

ATTACHMENT B

List of GIS Map Layers

- Major and minor roads
- Hydrography (major rivers and streams)
- State, county and municipal boundaries
- Public lands (forests, game lands, parks, county and municipal parks)
- Existing and proposed land trails, including the Ohio River Land Trail - North & South Shore primary and secondary trails.
- Digital elevation (topography)
- Public and key private access points
- River miles
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- Bridges
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ATTACHMENT C

ORTC – provided content

The ORTC has prepared 529 PowerPoint slides that provide photos, access sites, key features along the route, and GPS coordinates (lat/long). Consultant will use this information in preparing the proposal, understanding that much of the data collection work has been done. Download the file at <https://docs.google.com/open?id=0B0G4kXc-ye6bSThnQWpXTnFPTVE>

The following Google Earth map files are also available for consultant use, indicating a majority of the access points. <https://docs.google.com/open?id=0B0G4kXc-ye6bTnpuT0xGOV8xSmM>



EXHIBIT C: Ohio River Trail Council Supplementary Contractor Agreement

OHIO RIVER TRAIL COUNCIL SUPPLEMENTARY CONTRACTOR AGREEMENT

Contractor Responsibilities. To require contractors to comply with the following contractor responsibility provisions. (For the purpose of this Ohio River Trail Council (ORTC) Grant, the term “Contractor” is defined as any person, including, but not limited to, a bidder, offer or, loan recipient, grantee or sub-grantee, who has furnished or seeks to furnish goods, supplies, services, or leased space, or who has performed or seeks to perform construction activity under the contract, subcontract, grant or sub-grant, or with a person under contract, sub-contract, grant or sub-grant or state affiliated entities, and state-related institutions.)

- A. The Contractor must certify, in writing, for itself and all its subcontractors, that as of the date of its execution of this Grant, neither the Contractor, nor any subcontractors, nor any suppliers are under suspension or debarment by the Commonwealth or any governmental entity, instrumentality, or authority.
- B. The contractor’s obligations pursuant to these provisions are ongoing from and after the effective date of the Grant through the termination or expiration date thereof. Accordingly, the Contractor shall have an obligation to inform the ORTC if, at any time during the term of the Grant, it becomes delinquent in the payment of taxes or other Commonwealth obligations, or if it or any of its sub-grantees or subcontractors are suspended or debarred by the Commonwealth, the federal government, or other state or governmental entity. Such notification shall be made within fifteen (15) days of the date of suspension or debarment.
- C. The failure of the Contractor to notify the ORTC of its suspension or debarment by the Commonwealth, any other state, or the federal government shall constitute an event of default of the Grant with the ORTC.
- D. The Contractor agrees to reimburse the ORTC or the Commonwealth for the reasonable costs of investigation incurred for investigations of the Contractor’s compliance with the terms of this or any other agreement between the Contractor and the ORTC or the Commonwealth, which results in the suspension or debarment of the Contractor. The Contractor shall not be responsible for investigate costs for the investigations that do not result in the Contractor’s suspension of debarment.

- E. The Contractor may obtain a current list of suspended and debarred Commonwealth contractors by contacting DGS at:

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Office of Chief Counsel
603 North Office Building
Harrisburg, PA 17125
Telephone: (717) 783-6472 or Fax: (717) 787-9138

Nondiscrimination/sexual harassment. During the term of this Grant, the Contractor agrees as follows:

- A. In the hiring of any employees for the manufacture of supplies, performance of work, or any other activity required under the Grant or any sub-grant, the Contractor, subcontractor or any person acting on behalf of the Contractor or subcontractor shall not, by reason of gender, race, creed or color, discriminate against anyone who is qualified and available to perform the work to which the employment relates.
- B. Neither the Contractor nor any subcontractor nor any person on their behalf shall in any manner discriminate against or intimidate any employee involved in the manufacture of supplies, the performance of work or any other activity required under the Grant on account of gender, race, creed or color.
- C. The Contractor and any subcontractors shall establish and maintain a written sexual harassment policy and shall inform their employees of the policy. The policy must contain a notice that sexual harassment will not be tolerated, and employees who practice it will be disciplined.
- D. The Contractor shall not discriminate by reason of gender, race, creed or color against any subcontractor or supplier who is qualified to perform the work to which the Grant relates.
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Hold Harmless. The Contractor shall be responsible for, and agrees to indemnify and hold harmless the ORTC from, all losses, damages, expenses, claims, demands, suits, and actions brought by any party against the ORTC as a result of the contractor's failure to comply with the provisions of this Agreement.

Contractor Integrity. To comply with the following contractor integrity provision:

- A. For purposes of this Paragraph only, the words "confidential information," "consent," "contractor," "financial interest," and "gratuity" shall have the following definitions:
 - i. Confidential information means information that is not public knowledge, or available to the public on request, disclosure of which would give an unfair, unethical, or illegal advantage to another desiring to contract with the ORTC or the Commonwealth.
 - ii. Consent means written permission signed by a duly authorized officer of the ORTC, provided that where the material facts have been disclosed, in writing, by pre-qualification, bid, proposal, contractual, or grant terms, the ORTC shall be deemed to have consented by virtue of execution of this Grant.
 - iii. Contractor means the individual or entity that has entered into this Grant with the ORTC, including directors, officers, partners, managers, key employees, and owners of more than a five percent (5%) interest.
 - iv. Financial interest means: Ownership of more than a five percent (5%) interest in any business; or holding a position as an officer, director, trustee, partner, employee, or the like, or holding any position of management.
 - v. Gratuity means any payment of more than nominal monetary value in the form of cash, travel, entertainment, gifts, meals, lodging, loans, subscriptions, and advances, deposits of money, services, employment, or contracts of any kind.
- B. The Contractor shall maintain the highest standards of integrity and shall take no action in violation of state or federal laws, regulations, or other requirements that govern contracting with the Commonwealth.
- C. The Contractor shall not disclose to others any confidential information gained by virtue of this Grant.
- D. The Contractor shall not, in connection with this or any other agreement with the Commonwealth, directly or indirectly, offer, confer, or agree to confer any pecuniary benefit on anyone as consideration of the decision, opinion, recommendation, vote, other exercise of discretion, or violation of a known legal duty by any officer or employee of the Commonwealth.

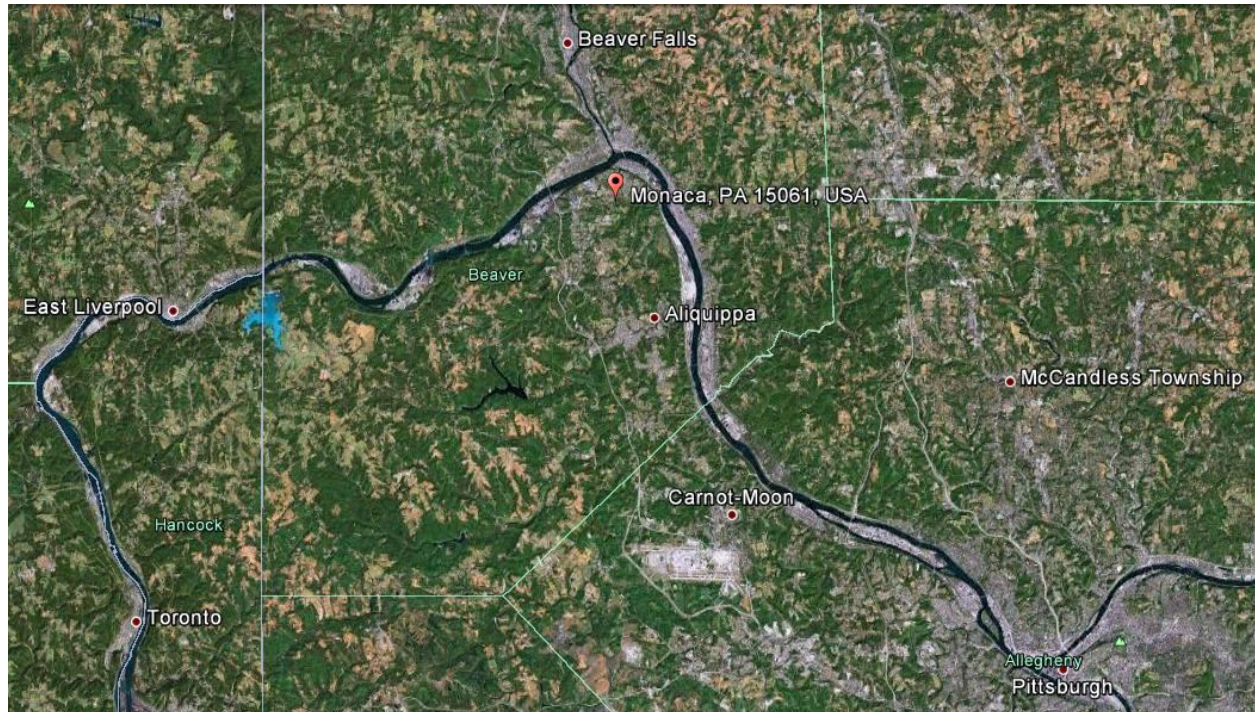
- E. The Contractor shall not, in conjunction with this or any other agreement with the Commonwealth, directly or indirectly, offer, give or agree to promise to give to anyone any gratuity for the benefit of or at the direction or request of any officer or employee of the Commonwealth.
- F. Except with the consent of the ORTC, neither the Contractor, nor anyone in privity with him or her, shall accept or agree to accept from, or give or agree to give any person, any gratuity from any person in connection with the performance of work under the Grant except as provided therein. Except with the consent of the ORTC, the Contractor shall not have a financial interest in any other contractor, subcontractor, or supplier providing services, labor, or material on this project. The Contractor, upon being informed that any violation of these provisions has occurred or may occur, shall immediately notify the ORTC in writing. The Contractor, by execution of the Grant and by the submission of any bills or invoices for payment pursuant thereto, certifies and represents that he or she has not violated any of these provisions. The Contractor, upon the inquiry or request of the ORTC or any of that official's agents or representatives, shall provide, or if appropriate, make promptly available for inspection or copying, any information of any type or form, deemed relevant to the Contractor's integrity or responsibility, as those terms are defined by the Commonwealth's statutes, regulations, or management directives. Such information may include but shall not be limited to, the Contractor's business of financial records, documents or files of any type or form which refer to or concern the Grant. Such information shall be retained by the Contractor for a period of three (3) years beyond the termination of the Grant, unless otherwise provided by law.



EXHIBIT B: ORTC Request for Proposal and Proposal Response

**REQUEST FOR PROPOSALS (RFP)
WATER TRAIL MAP & GUIDE PREPARATION**

OHIO RIVER WATER TRAIL (ORWT)



Proposals due 12:00 noon, on Thursday, October 11, 2012

Submit to: Dr. Vincent Troia

Chief Executive Officer, Ohio River Trail Council

1100 Pennsylvania Av | Monaca PA 15061

Phone: 724.728.2625 | Cell: 724.462.3183 | drvtroia@ohiorivertrail.org

www.ohiorivertrail.org

**REQUEST FOR PROPOSALS
WATER TRAIL MAP & GUIDE PREPARATION
OHIO RIVER WATER TRAIL (ORWT)
September 10, 2012**

1. OVERVIEW

The Ohio River Trail Council (ORTC) is composed of a dedicated and visionary leadership to develop strategies and implement our initiatives to realize our mission. The ORTC is a multi-municipal organization that is committed to excellence and has passion for delivering outstanding results.

The ORTC, in partnership with the Pennsylvania Environmental Council (PEC), and with partial funding from the Port of Pittsburgh Commission (PPC), National Park Service (NPS) and local matches, is developing a water trail system in the Pennsylvania counties of Allegheny and Beaver. The blueway will connect the Three Rivers Water Trail in Allegheny County, Pa to Columbiana County, Ohio and Hancock County, West Virginia.

The boundary of the proposed 63-mile Ohio River Water Trail (ORWT) is from the beginning of the Ohio River at milepost 0.0 at the confluence of the Monongahela and Allegheny Rivers at Point State Park in Pittsburgh PA, downstream to Newell WV at milepost 46.0. The ORWT will also include the following tributaries: 1) twelve-miles of the Little Beaver Creek to Beaver Creek State Park, 2) three-miles of the Beaver River to the Townsend (Fallston) Dam, and 3) two-miles of the Raccoon Creek including the Rocky Bottom-Raccoon Creek Road launch.

The ORTC Ohio River Water Trail (ORWT) Committee, established May 11 2012, includes representatives from the Pennsylvania Fish & Boat Commission, US Fish & Wildlife Service's Ohio River Islands National Wildlife Refuge, US Army Corps of Engineers and local communities and interested nonprofit organizations (See ATTACHMENT A for complete list of partners and affiliations).

The goal of the ORWT Project is to furnish and promote safe access to our region's waterways while also providing connections to our history, ecology, geology, heritage, wildlife and economic stimulus. The endeavor specifically provides for the expansion and promotion of canoe, kayak and rowing access along the Ohio River and its tributaries with the objective to add sections of the Beaver River, Little Beaver Creek, Ohio River and Raccoon Creek to the Pennsylvania Water Trails System, and ultimately to the National Water Trail System. Once the ORWT gains the recognition of a state water trail, this accomplishment will assist our partner communities to meet our shared goal of increased ecotourism and economic stimulus as well as improved utilization and stewardship of our natural and recreational resources by our residents.

The ORTC is asking you to join us in the development and production of the Ohio River Water Trail Map & Guide to be used by paddlesports enthusiasts, motor boaters and anglers.

2. SCOPE OF SERVICES

The scope of services for the preparation of the water trail map and guide will include review of existing information and base maps, preparation of base maps, and preparation of the map/guide in a suitable format for printing. Optional service will include publication of map/guide.

Deliverables:

- 1) GIS files (i.e. shape files) of base mapping, for future map updates.
- 2) Graphic design files (i.e. EPS files) of the map/guide ready to take to the printer.
- 3) Website files of the map/guide (i.e. PDF format), segmented into 8½" x 11" pages for printing by the general public.
- 4) Logo design (i.e. JPG format with EPS file available).
- 5) Optional: Printed Map/Guide from professional print shop, using agreed on specifications.

Tasks to be performed will include the following, working in close collaboration with the Ohio River Water Trail Committee of the Ohio River Trail Council:

2.1 Compile and Review Existing Information and Base Maps:

- 2.1.1 Review and compile existing Geographic Information System (GIS) base maps that are available from the PA Fish & Boat Commission (PFBC), Pennsylvania Spatial Data Access (PASDA) and other regional plans. These maps will include: topography [digital elevation], bridges, roads, railroads, hydrology, public lands [local, state, and federal parks, forests, and game lands], locks and dams, river miles, land trails, public access points, and state, county and municipal boundaries;
- 2.1.2 Assess corridor by boat identifying and verifying existing and potential access points, hazards along the river, and opportunities along the river. Acquire additional GPS points as needed. ORTC has compiled 529 PowerPoint slides with much of this information (see Attachment C);
- 2.1.3 Review relevant planning documents related to trails and greenways for this region including county greenway and trail plans to be provided by the ORTC.

2.2 Prepare Base Maps for the Map/Guide

- 2.2.1 The refinement of mapping will include compiling the various sources of mapping information into one large base map with possible segment insets and adding additional (non GIS) information.
- 2.2.2 Mapping should be completed in GIS, or in another format that is agreeable to the ORTC, and it should be in a format that allows information to be updated over time;
- 2.2.3 GIS layers will include the following information: major and minor roads, hydrology (major rivers and streams), state, county and municipal boundaries, public lands (forests, game lands, parks, county and municipal parks), existing and proposed trails (including the Ohio River Land Trail), digital elevation, public and key private access points (provided by client) and river miles (refer to ATTACHMENT B for a complete list of map layers);
- 2.2.4 Revise maps to incorporate additional points of interest, labeling, and text to include interpretive, visitor use, and safety information (ORTC will provide lat/long of most all points of interest and brochure text);
- 2.2.5 Prepare inset maps, if needed, that show more detail of the tributaries, and including directions to access points, dam portages, campgrounds (ORTC will provide lat/long of most all points of interest and brochure text);
- 2.2.6 Prepare two index maps: 1) showing the location of the Ohio River Water Trail to PA, WV, and OH; and 2) showing the location of the various inset maps, as needed.

2.3 Preparation of Water Trail Map & Guide

- 2.3.1 Export maps for graphic design, in a mutually agreed upon format such as an EPS file, for the design and layout of trail map/guide;
- 2.3.2 Design and layout the text side and map side of a visually aesthetic and easy-to-understand and use water trail map/guide. The design should adhere to other water trail map and guides that are available on the PA Fish and Boat Commission web site (<http://fishandboat.com/watertrails/>);
- 2.3.3 Assist the ORTC with creation of a water trail logo. Provide logo in vector format, JPG format and incorporate into the PFBC Water Trail logo standard.
- 2.3.4 Segment the map/guide into easy-to-use and easy-to-read pages for website publication. Provide maps in 8½ x 11" printable format, preferably in an Adobe PDF format or similar universal format.
- 2.3.5 Work with ORTC to ensure that the map/guide is correctly printed with the correct specifications for a high quality product.

2.4 Optional: Publication of Map/Guide.

- 2.4.1 ORTC will retain the option to finance the printing of the Map/Guide under separate contract. Please provide your bid with and without the inclusion of printing costs.
- 2.4.2 Printing specifications are:
 - 2.4.2.1 Trim Size of Paper: 16.50" x 21.75"
 - 2.4.2.2 Paper Stock: House Gloss 100#T – White (.0055)
 - 2.4.2.3 Ink: 4/4: -4/C Process over 4/C Process
 - 2.4.2.4 Proof: One set of digital proofs included
 - 2.4.2.5 Bindery: Cut, fold, shrink-wrap, carton pack
 - 2.4.2.6 Quantity: 10,000 / 20,000
 - 2.4.2.7 Press-ready digital file supplied

3. PROPOSAL FORMAT AND CONTENTS

3.1 Format:

Six paper copies of the proposals and one digital copy (in PDF format) shall be submitted by the deadline on the cover page and should include:

- 3.1.1 Title Page
- 3.1.2 Cover Letter
- 3.1.3 Cost breakdown by each of the four tasks, direct expense, and overhead factor, including billing rates for each person and projected time of involvement.
- 3.1.4 Statement of consultant qualifications, including resumes of persons to be involved in the project.
- 3.1.5 List of subcontractors, if applicable.

4. CONSULTANT SELECTION

4.1 Selection Criteria:

Proposals shall be evaluated according to the following criteria:

- 4.1.1 Completeness of the proposal and the extent to which the objectives and schedule of the project have been met or exceeded.
- 4.1.2 Experience of consultant with similar projects.
- 4.1.3 Experience of the project manager and of individuals assigned to this project.
- 4.1.4 Total project cost, and appropriateness of cost allocation among tasks.
- 4.1.5 Assurance to complete project in a timely fashion.

4.2 Selection Procedure:

4.2.1 The ORTC and other project partners as appropriate shall review the proposals.

4.2.2 After initial review and discussion of the proposals, the ORTC may interview those consultants that it selects as finalists. Costs incurred for the interview are not reimbursable.

4.2.3 The ORTC may at its discretion choose to select an awardee without interviews.

4.2.4 The ORTC reserves the right to dismiss all proposals if deemed unacceptable with regard to this Request for Proposals.

5. SCHEDULE

September 10, 2012	Request for Proposals released.
September 27, 2012	Questions from proposers.
October 5, 2012	Responses to Questions. All responses will be publicly available.
October 11, 2012	Proposals due at the ORTC address. This is not a postmark deadline.
November 1, 2012	Contract Starts.
May 1, 2013	Product is back from the printer. All deliverables are in.

ATTACHMENT A - LIST OF PARTNERS AND AFFILIATIONS

Ohio River Water Trail Committee (alphabetical order), August 2012

Brenda Applegate, Executive Director Beaver County Historical Research & Landmarks Foundation
The William Vicary Mansion | 1235 3rd Ave. | Freedom, PA 15042
Phone: 724-775-1848 | Fax: 724-775-1523 | bchrlf@verizon.net | www.bchrlf.org

Gregory Bellich, U.S. Army Corps of Engineers, Pittsburgh District
2200 William S. Moorhead Federal Building | 1000 Liberty Avenue | Pittsburgh, PA 15222-4186
Phone: 412-395-7171 | Cell: 814-282-8319 | Fax: 412-644-2811 | gregory.a.bellich@usace.army.mil | <http://www.lrp.usace.army.mil/>

Donna Campbell, Secretary ORTC Board of Directors
1100 Pennsylvania Av | Monaca Pa 15061
Phone: 724-846-4528; 724-630-4823 | D_campbell1@verizon.net | www.ohiorivertrail.org

Hannah E. Hardy, Director of Recreational Infrastructure
PA Environmental Council | 22 Terminal Way | Pittsburgh, PA 15219
Phone: 412-481-9400 | hhardy@pecpa.org | PEC www.pecpa.org | PA Water Trails www.pawatertrails.org

Tom King, Director Beaver County Recreation & Tourism Dept.; Bradys Run Park Recreation Facility
121 Bradys Run Road, Beaver Falls, PA 15010
Phone: 724/770-2060 - Recreation Dept. | Phone: 724-770-2062 - Tourism Dept. | tking@beavercountypa.gov; | www.VisitBeaverCounty.com

Mindy McKee, Secretary ORTC Board of Directors
1100 Pennsylvania Av | Monaca Pa 15061
Phone: 412-974-2291 | mckee@zoominternet.net | www.ohiorivertrail.org

Victoria E. Michaels, Executive Director Independence Conservancy
P.O. Box 248 | Industry, PA 15052-0248
Phone: 724-495-7316 | vemichaels@gmail.com | www.independenceconservancy.org

Peggy Pings, Outdoor Recreation Planner, National Park Service - RTCA
WV Field Office | 325-F Percival Hall | P.O. Box 6125 | Morgantown, WV 26506-6125
WVU Office: 304-293-7528 | Cell: 304-282-7464 | Home Office: 304-879-5622 | Fax: 304-293-2441 | mpings@wvu.edu | www.nps.gov/rtca

Doniele J. (Andrus) Russell, CFM Shared Greenways and Environmental Planner Beaver County
810 3rd Street | Beaver, PA 15009
Phone: 724-770-4428 | Cell: 724-968-0793 | dandrus@beavercountypa.us | donielerussell@gmail.com | www.beavercountypa.gov/

Sara Siekierski, Acting Refuge Manager, Ohio River Islands NWR
3982 Waverly Rd. | Williamstown, WV 26187
Phone: 304-375-2923 ext. 123 | Cell: 304-966-2028 | Fax: 304-375-2926 | sara_siekierski@fws.gov

John Szatkiewicz, Mayor Ohioville & Vice President ORTC
6429 Tuscarawas Road | Midland PA 15059
Phone: 724-643-8422 | Cell: 724-544-3654 | 57tbird@comcast.net | www.ohiorivertrail.org

Raymond Tabay, Beaver County Rowing Association
306 Shirley Drive | Monaca, Pa 15061
Phone: 724- 728- 8860 | raymond.tabay@yahoo.com | www.beavercountyrowing.org

Linda Tice, ORTC Board of Directors
6429 Tuscarawas Road | Midland PA 15059
Phone: 724-643-8422; Cell: 724-544-3654 | 57tbird@comcast.net | www.ohiorivertrail.org

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Sam Wagner, U.S. Army Corps of Engineers, Pittsburgh District
<mailto:samuel.f.wagner@usace.army.mil>
Pittsburgh PA 15222-4186

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- A. The Contractor must certify, in writing, for itself and all its subcontractors, that as of the date of its execution of this Grant, neither the Contractor, nor any subcontractors, nor any suppliers are under suspension or debarment by the Commonwealth or any governmental entity, instrumentality, or authority.
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- A. For purposes of this Paragraph only, the words "confidential information," "consent," "contractor," "financial interest," and "gratuity" shall have the following definitions:
 - i. Confidential information means information that is not public knowledge, or available to the public on request, disclosure of which would give an unfair, unethical, or illegal advantage to another desiring to contract with the ORTC or the Commonwealth.
 - ii. Consent means written permission signed by a duly authorized officer of the ORTC, provided that where the material facts have been disclosed, in writing, by pre-qualification, bid, proposal, contractual, or grant terms, the ORTC shall be deemed to have consented by virtue of execution of this Grant.
 - iii. Contractor means the individual or entity that has entered into this Grant with the ORTC, including directors, officers, partners, managers, key employees, and owners of more than a five percent (5%) interest.
 - iv. Financial interest means: Ownership of more than a five percent (5%) interest in any business; or holding a position as an officer, director, trustee, partner, employee, or the like, or holding any position of management.
 - v. Gratuity means any payment of more than nominal monetary value in the form of cash, travel, entertainment, gifts, meals, lodging, loans, subscriptions, and advances, deposits of money, services, employment, or contracts of any kind.
- B. The Contractor shall maintain the highest standards of integrity and shall take no action in violation of state or federal laws, regulations, or other requirements that govern contracting with the Commonwealth.
- C. The Contractor shall not disclose to others any confidential information gained by virtue of this Grant.
- D. The Contractor shall not, in connection with this or any other agreement with the Commonwealth, directly or indirectly, offer, confer, or agree to confer any pecuniary benefit on anyone as consideration of the decision, opinion, recommendation, vote, other exercise of discretion, or violation of a known legal duty by any officer or employee of the Commonwealth.

- E. The Contractor shall not, in conjunction with this or any other agreement with the Commonwealth, directly or indirectly, offer, give or agree to promise to give to anyone any gratuity for the benefit of or at the direction or request of any officer or employee of the Commonwealth.
- F. Except with the consent of the ORTC, neither the Contractor, nor anyone in privity with him or her, shall accept or agree to accept from, or give or agree to give any person, any gratuity from any person in connection with the performance of work under the Grant except as provided therein. Except with the consent of the ORTC, the Contractor shall not have a financial interest in any other contractor, subcontractor, or supplier providing services, labor, or material on this project. The Contractor, upon being informed that any violation of these provisions has occurred or may occur, shall immediately notify the ORTC in writing. The Contractor, by execution of the Grant and by the submission of any bills or invoices for payment pursuant thereto, certifies and represents that he or she has not violated any of these provisions. The Contractor, upon the inquiry or request of the ORTC or any of that official's agents or representatives, shall provide, or if appropriate, make promptly available for inspection or copying, any information of any type or form, deemed relevant to the Contractor's integrity or responsibility, as those terms are defined by the Commonwealth's statutes, regulations, or management directives. Such information may include but shall not be limited to, the Contractor's business of financial records, documents or files of any type or form which refer to or concern the Grant. Such information shall be retained by the Contractor for a period of three (3) years beyond the termination of the Grant, unless otherwise provided by law.